



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 29 1999

DOT-E 10114
(FOURTH REVISION)

EXPIRATION DATE: November 30, 2000

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: American Airlines, Incorporated
DFW Airport, TX

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION: This exemption authorizes the transportation or offering for transportation in commerce of cylinders containing compressed oxygen exempt from the shipping paper requirements of Part 172, Subpart C; and from the prohibition in § 175.85(a) against carriage of a hazardous material in the cabin of a passenger aircraft, when cylinders containing compressed oxygen are used for a medical purpose by passengers or transported for purposes of deployment prior to use or returned for maintenance. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subpart C; and § 175.85(a).
5. BASIS: This exemption is based on the application of American Airlines, Incorporated dated November 6, 1998, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Oxygen, compressed	2.2	UN1072	

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. Packagings prescribed are DOT Specification 3AA steel cylinders or 3AL aluminum alloy cylinders owned and maintained by the air carrier or the air carrier's parent company. Each cylinder must be overpacked in a metal or hard plastic case meeting the self-extinguishing requirements of 14 CFR § 25.853.
- b. Each cylinder must be inspected prior to stowage on the aircraft to ensure that all valves are securely closed.
- c. Not more than 12 cylinders may be placed onboard an aircraft, and not more than 6 of these cylinders may be carried in the passenger cabin. Each packaging must be secured in a carry-on-baggage compartment or must be securely stowed in a cargo compartment.

8. SPECIAL PROVISIONS:

- a. This exemption authorizes the transportation of cylinders containing compressed oxygen only for purposes of deployment prior to medical use by a passenger or return for maintenance. Cylinders offered for transportation and transported under the terms of this exemptions must be authorized for carriage and use of the air carrier, its parent company, or its subsidiary company, under the provisions of 14 CFR § 121.574 or § 135.91.
- b. This exemption authorizes transportation of cylinders of compressed oxygen in aircraft of United States registry anywhere in air commerce; however, it does not provide relief from requirements of national or international regulations applicable to foreign-controlled airspace.

c. Shipments made under the terms of this exemption are excepted from the shipping paper requirements of Part 172, Subpart C, and from the prohibition in § 175.85(a) against carriage of a hazardous material in the cabin of a passenger aircraft.

d. The operator of the aircraft shall notify the pilot-in-command of the predeployment of the cylinders covered under this exemption as required by § 175.33.

e. MARKING - In addition to the markings and labels required on cylinders (49 CFR Part 172, Subparts D and E) and overpacks (§ 173.25), each overpack must be plainly and durably marked "DOT-E 10114".

9. MODES OF TRANSPORTATION AUTHORIZED: Passenger-carrying aircraft.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

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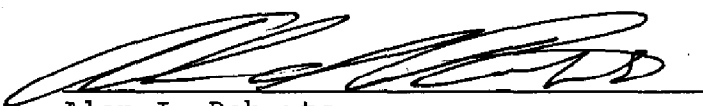
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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (§ 171.15 and § 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

JAN 29 1999


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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